

SUPPLY AGREEMENT

THIS SUPPLY AGREEMENT is made on 9 April 2019 between Halbrook Electrical Distribution Ltd (company number 04118276) of Halbrook House, Marmion Way, Ellersby EL4 7QN ("the Supplier") and Colverne Marine Engineering Limited (company number 06421889) of Ardleigh Yard, Marn Quay, Stanwick Vale SV1 8LR ("the Customer").

1 WHAT THIS AGREEMENT COVERS

- 1.1 The Supplier supplies electrical, cable and industrial products to the Customer.
- 1.2 All purchases of those products by the Customer from the Supplier are made under this Agreement, whether ordered by telephone, by electronic mail or through the Supplier's trade counter.
- 1.3 This Agreement covers the Customer only. It does not cover any other company.

2 HOW LONG IT LASTS

- 2.1 This Agreement starts on 9 April 2019.
- 2.2 It continues until either party ends it by giving the other not less than three months' written notice.
- 2.3 Either party may end this Agreement immediately if the other becomes insolvent.

3 PRICES

- 3.1 Prices are those in the Supplier's price file for the Customer, being list price less 31 per cent on cable and less 26 per cent on all other product groups.
- 3.2 Prices are reviewed on 1 April in each year.

4 PAYMENT

4.1 The Customer shall pay each invoice within 30 days of the date of the invoice.

4.2 The Supplier may suspend deliveries while any sum is overdue.

5 DELIVERY AND CARRIAGE

5.1 Carriage is charged to the Customer at cost on every delivery. There is no carriage free threshold under this Agreement.

5.2 Delivery is to the Customer's yard at Marn Quay unless the order says otherwise.

6 QUALITY

6.1 The Supplier passes on to the Customer the benefit of any manufacturer's warranty and will replace or credit products shown to be defective within twelve months.

7 TITLE AND RISK

7.1 Risk passes on delivery; title passes on payment in full.

8 CHANGE OF NAME OR OWNERSHIP

8.1 If either party changes its name it shall tell the other in writing. A change of name does not affect this Agreement, which continues in the new name.

9 PRECEDENCE

9.1 This Agreement prevails over any purchase order, delivery note or other document used by either party.

10 ENTIRE AGREEMENT

10.1 This Agreement is the entire agreement between the parties about the supply of the products.

11 LAW

11.1 The law of England and Wales applies.

SUPPLY AGREEMENT - SIGNATURES

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Agreement 2019/044, made on 9 April 2019.

The Supplier: Halbrook Electrical Distribution Ltd

The Customer: Colverne Marine Engineering Limited

SIGNED for and on behalf of Halbrook Electrical Distribution Ltd

A handwritten signature in blue ink, appearing to read 'R. Aldbury', written over a horizontal line.

R. Aldbury

Sales Director

Date: 9 April 2019

SIGNED for and on behalf of Colverne Marine Engineering Limited

A handwritten signature in blue ink, appearing to read 'D. Marrable', written over a horizontal line.

D. Marrable

Operations Director

Date: 9 April 2019